A2AJ Innovation Fellowship Proposal

Project Name:

A2J Charter Intervention Accelerator

Institution/Program: Osgoode Hall Law School, York University, Juris Doctor
Student Name: Chong Tan (3rd year graduating student)
Email address: chongtan2023@osgoode.yorku.ca
Phone Number:
Word Count: 2462

Table of Content

I. Introduction to the Project 1

1.1 The Access to Justice Disconnect 1

1.2 What Has Been Built 2

1.3 What the Fellowship Would Build 3

Stage 1: The Charter Intervention Monitor (Months 1–4) 3

Stage 2: Ottawa Agent Matching (Months 3–5) 4

Stage 3: Expanding to Provincial Courts of Appeal (Months 4–8) 4

Stage 4: Intervention Application Toolkit (Months 6–10) 4

II. Technical Feasibility & capability 4

2.1 Technical Foundation 4

2.2 Technical Approach of Stage 1 5

2.3 Technical Approach of Stage 2 5

2.4 Technical Approach of Stage 3 5

2.5 Technical Approach of Stage 4 5

2.6 Data Availability and Licensing 6

III. Equity, Diversity, and Inclusion 6

IV. Project Plan and Budget 7

4.1 Timeline 7

4.2 Budget 7

I. Introduction to the Proposed Project

1.1 The Access to Justice Disconnect

In recent decades, third-party interventions have fundamentally transformed constitutional litigation in Canada. As Alarie and Green[1] demonstrated, interveners historically made submissions in roughly half of all cases heard by the Supreme Court of Canada (SCC) between 2000 and 2008.[2] They also noted that *Charter* appeals were the most intervener-intensive, with a rate of intervention approaching 90% throughout the 1990s and 2000s.[3] My own empirical analysis confirms and updates this reality for the modern era: out of 402 *Charter* cases heard by the SCC between 2011 and 2025, 346 cases (86%) featured third-party intervenors. These participation rates reflect the SCC's own institutional interest in receiving diverse legal perspectives on constitutional questions.

These statistics also reveal that intervention is a core mechanism for shaping Canadian constitutional law at the SCC. However, participating in this process is legally and practically demanding. The intervention process is governed by the *Rules of the Supreme Court of Canada*.[4] At a minimum, an applicant seeking to intervene must satisfy a strict two-part test: First, the applicant must show that it has an interest in the proceeding; second, the applicant must demonstrate that it will make submissions that are both "useful and different from the parties' submissions".[5] To meet this second criterion, an intervener must leverage its expertise to "shed fresh light or provide new information on the matter".[6] Because of these technical requirements of intervention, translating a perspective obtained in daily legal practice into a highly technical legal contribution that respects these strict SCC boundaries requires specialized legal representation.

This creates a severe Access to Justice (A2J) paradox, which I observed firsthand while working at a legal clinic: on the one hand, legal clinics have deep subject-matter expertise and represent marginalized communities. These clinics inherently hold the "unique perspective" required by the *Workers' Compensation* test. However, their own workload is always too heavy to intervene by themselves, and they also severely lack financial resources to hire specialized external counsel to draft their factums and appear at the SCC; on the other hand, private firm lawyers who frequently engage in constitutional litigation have the skills and desire, but standing rules generally prevent individual lawyers from intervening on their own, which means they need an institutional client to provide the requisite "interest" and "perspective." Without a systematic way to connect these groups, structural barriers prevent the most underrepresented voices from reaching constitutional adjudication. This project could address that barrier directly.

---

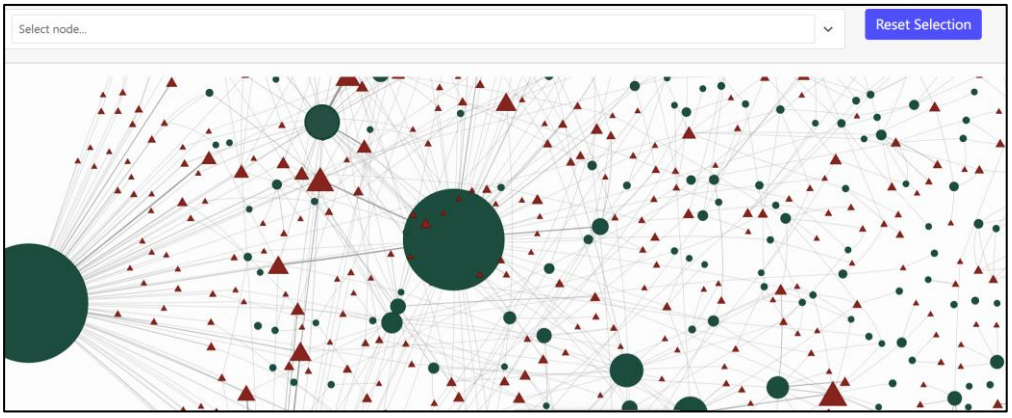
[1] Benjamin R D Alarie, and Andrew J Green, "Interventions at the Supreme Court of Canada: Accuracy, Affiliation, and Acceptance" (2010) 48:3 Osgoode Hall LJ 381 [Alarie and Green].
[2] *Ibid* at 382.
[3] *Ibid* at 398.
[4] *Rules of the Supreme Court of Canada*, SOR/2002-156, ss 55-57 [*Rules*].
[5] *Reference re Workers' Compensation Act 1983 (Nfld.) (Application to intervene)*, 1989 CanLII 23 at 339 [*Workers' Compensation*].
[6] *Ibid* at 340.

1.2 What Has Been Built

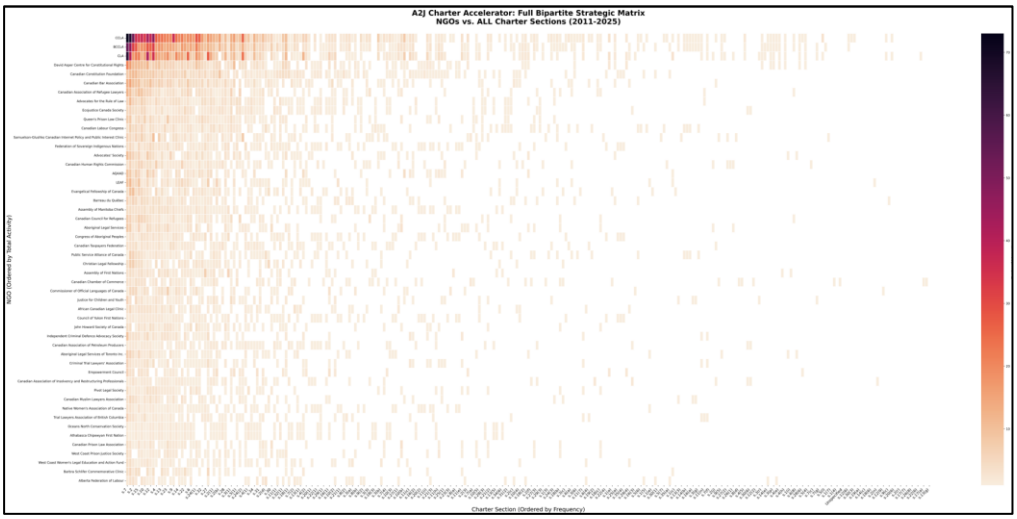
As an assignment of a course called *Legal Info Tech* at Osgoode Hall Law School, I built a Python-based data pipeline to scrape and process all 402 SCC *Charter* cases docketed between 2011 and 2025. The A2AJ Canadian case law dataset provided the structured index of *Charter* decisions used to identify and locate the relevant docket pages; from there, a custom BeautifulSoup scraping pipeline extracted the granular counsel-client relationship data that the judgment texts themselves do not reliably contain. The resulting dataset was manually validated against official SCC dockets at a 96.67% accuracy rate across a randomized 30-case sample.

On top of this dataset, three visual analytics tools were built:

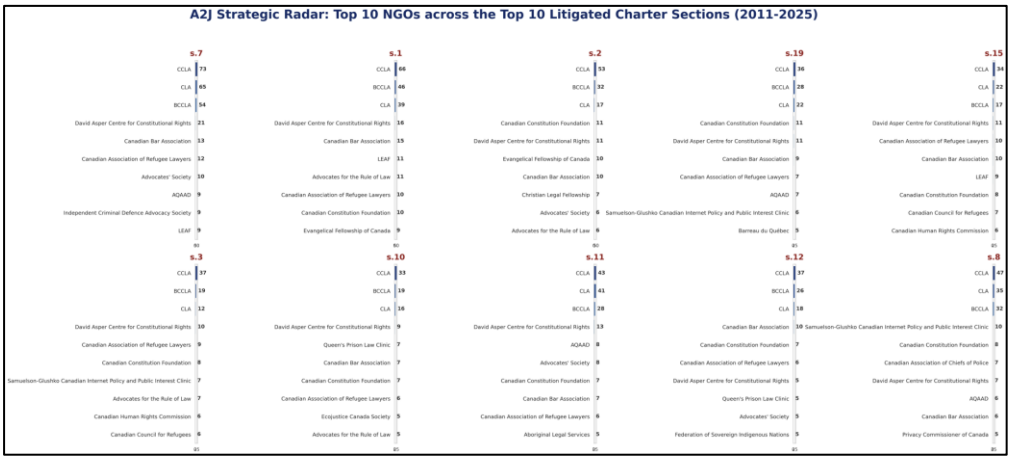
- An **interactive bipartite network map** (HTML/PyVis/NetworkX) that visualizes the connections between NGO intervenors and individual counsel across 15 years of *Charter* litigation. Each node is sized by total SCC appearances; the map is fully searchable by lawyer or organization name.

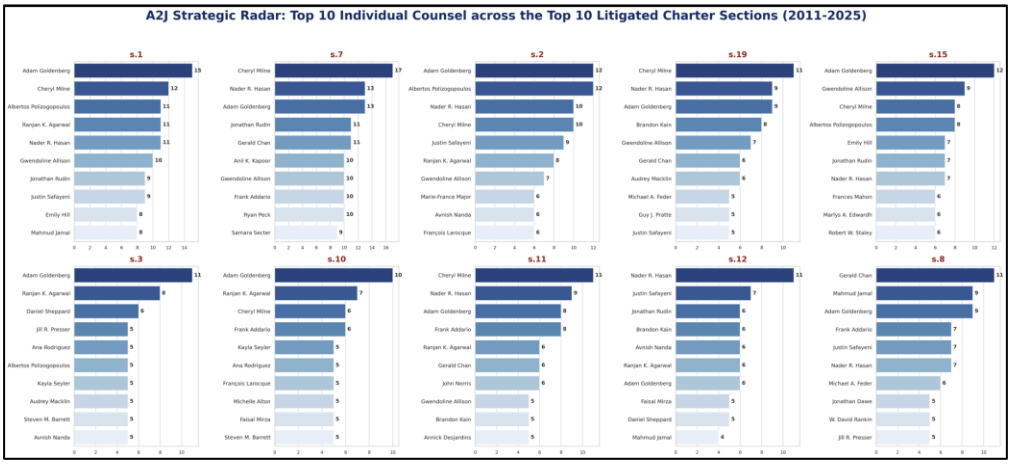


- A **jurisprudential heatmap** showing each major NGO's intervention frequency across all *Charter* sections, allowing users to immediately identify which organizations are active in which constitutional territories.



- A **set of strategic dashboards** ranking the Top 10 NGOs and Top 10 individual counsel across the 10 most litigated *Charter* sections.





For example, a clinic worker preparing a s. 8 case could use the dashboard to spot dominant NGOs, then check the network map to locate available counsel operating at the edges of those established networks; similarly, a private lawyer seeking to build a constitutional profile can use the heatmap to identify smaller regional organizations with capacity gaps and reach out proactively. The tool turns what was previously a process driven by informal connections and institutional memory into a data-driven infrastructure.

1.3 What the Fellowship Would Build

The existing tool is static: it captures a historical snapshot but requires manual updates. The fellowship would fund the next four stages of development.

Stage 1: The Charter Intervention Monitor (Months 1–4)

The first deliverable is a publicly accessible web application that actively monitors newly granted SCC leave applications and alerts registered users (such as legal clinics and pro bono counsel) when a new *Charter* case opens for intervention. Currently, organizations must actively track the SCC's leave docket to identify intervention opportunities and they may miss the filing window. The Monitor's alert system will be built on the SCC's own public RSS and JSON feeds, which provide real-time notifications of new decisions and leave grants as they are published. The Monitor could also pair each alert with an automatically generated deadline calendar, i.e., from the leave grant date, the system calculates all key procedural deadlines under the *Rule*s, including the intervention application deadline and factum filing dates. In addition, the Monitor would keep adding new intervenor and counsel data as cases are decided so the tool reflects the current state of the ecosystem.

Stage 2: Ottawa Agent Matching (Months 3–5)

Another procedural issue is that appearing before the SCC requires a local Ottawa agent, which creates a separate access barrier for organizations outside the capital, particularly for those relying on pro bono counsel from other cities. The existing intervenor-counsel dataset already contains the data needed to identify which counsel have acted as Ottawa agents in past *Charter* cases. This stage re-analyzes that dataset to build a filterable layer within the network map specifically for Ottawa agent identification, and integrates it into the Monitor so that each case alert is accompanied by a list of agents with relevant subject-matter experience who have acted pro bono in the past.

Stage 3: Expanding to Provincial Courts of Appeal (Months 4–8)

Many *Charter* arguments that never reach the SCC are litigated at the provincial appellate level, and intervention opportunities at that stage are even less systematically tracked. The second stage of the fellowship would extend the data pipeline to include Courts of Appeal in Ontario and British Columbia (two jurisdictions with the highest volume of *Charter* appellate litigation) using publicly available docket data and A2AJ's dataset. This expansion broadens the tool's reach from a narrow SCC-focused resource to a multi-court infrastructure serving the full spectrum of *Charter* advocacy in Canada. The provincial data will also be integrated into the Monitor's alert system so that users can receive notifications across multiple court levels.

Stage 4: Intervention Application Toolkit (Months 6–10)

The most ambitious stage addresses the intervention application itself. The *Workers' Compensation* test is a structured legal argument, but one that is unfamiliar to most clinic workers and difficult to draft without specialized assistance. This toolkit has three components:

- First, a systematic analysis of the opening sections of publicly available intervenor factums using courts' docket, identifying how organizations across different *Charter* sections frame their organizational interest and unique perspective. Although applications to intervene are not published on the SCC docket, intervenors must substantiate the same standing arguments in their factums, which means factum openings are a reliable proxy for understanding what successful intervention looks like in practice.
- Second, a structured web questionnaire that guides a clinic through the test, helping them to articulate their organizational interest and unique perspective.
- Third, an LLM-assisted draft generator that takes the questionnaire responses and produces a structured initial draft for review by counsel. This is intended as a starting point that reduces the blank-page burden for organizations, but not legal advice.

II. Technical Feasibility & capability

2.1 Technical Foundation

The technical foundation for this project has already been demonstrated through my previous project for the course. The existing pipeline encompasses: web scraping in Python (BeautifulSoup), data cleaning and normalization including regex-based name standardization, network graph construction (NetworkX), interactive HTML visualization (PyVis), heatmap and dashboard generation (Seaborn/Matplotlib), and generative AI integration for structured data extraction from unstructured HTML. The pipeline processed 402 cases at 96.67% accuracy with programmatic error-handling for edge cases. The fellowship stages build incrementally on this foundation.

2.2 Technical Approach of Stage 1

The *Charter* Intervention Monitor requires four additional components beyond the existing pipeline:

1. **Backend database**: The static CSV datasets will be migrated to a structured database (SQLite or PostgreSQL) to support live updates and querying. This is a well-documented technical process with extensive open-source tooling.
2. **SCC RSS/JSON feed integration**: The SCC publishes real-time RSS and JSON feeds at decisions.scc-csc.ca that provide immediate notification of new decisions and leave grants as they are published. The Monitor will parse these feeds on a scheduled basis to identify newly granted *Charter* cases and trigger the alert pipeline. These feeds are publicly accessible with no licence restrictions. The A2AJ dataset will be used in parallel to cross-validate flagged cases against the historical intervenor database.
3. **Email alert system with deadline calculator**: A lightweight subscription system using standard email APIs (e.g., SendGrid free tier or equivalent) will allow registered users to receive notifications filtered by *Charter* section and court level. The front-end will be a simple web interface built in Flask or a static site framework. A rules-based deadline calculator applying the SCC's procedural timeline to each newly flagged leave grant will also be attached in the alert email.

2.3 Technical Approach of Stage 2

This stage re-analyzes the existing counsel dataset to identify Ottawa-based agents and their historical pro bono appearances. This requires no new data collection, only additional filtering and categorization logic applied to data already in the database. The output is a new filterable layer in the network map and an additional field in the Monitor's alert emails.

2.4 Technical Approach of Stage 3

Expanding to provincial courts of appeal relies on the same scraping methodology already validated at the SCC level. The Ontario Court of Appeal and British Columbia Court of Appeal both maintain publicly accessible online dockets. The existing BeautifulSoup pipeline will be adapted to the HTML structure of each court's docket system, and the A2AJ dataset will be used where available to supplement and cross-validate the scraped data.

2.5 Technical Approach of Stage 4

This stage combines three components:

- a systematic analysis of intervenor factum opening sections scraped directly from SCC dockets, identifying how organizations frame their interest and unique perspective across different *Charter* sections;
- a structured web questionnaire built in standard HTML/JavaScript that guides counsel representing clinic through the *Workers' Compensation* test; and
- an LLM API integration to generate an initial application draft from the questionnaire responses.

2.6 Data Availability and Licensing

All data sources used in this project are publicly accessible:

- **A2AJ Canadian case law dataset**: freely available via HuggingFace, including SCC dataset, BCCA dataset and ONCA dataset.
- **SCC dockets**: publicly available on the SCC's official website with no access restrictions.
- **Ontario and BC Courts of Appeal dockets**: publicly available on respective court websites.

All project deliverables will be developed as open-source tools under a permissive licence (MIT or Apache 2.0) and contributed to A2AJ's resource dataset. In addition, the intervenor-counsel relationship dataset built in this project does not currently exist in any publicly accessible form. Upon completion, it will be contributed to A2AJ's open dataset infrastructure for use by researchers, clinics, and legal technology developers.

III. Equity, Diversity, and Inclusion

The communities most likely to benefit from *Charter* intervention are those whose rights are most frequently at stake in equality, criminal procedure, and immigration cases, but they are also the communities least represented in the existing intervenor ecosystem. The data obtained from my previous research also confirmed this: a concentrated group of repeat players dominates SCC *Charter* intervention, while regional organizations representing marginalized populations appear rarely and inconsistently. This matters beyond any individual case. SCC *Charter* decisions set binding precedent: when an organization representing low-income tenants, survivors of gender-based violence, or racialized communities is absent from a constitutional case that will define the scope of their rights, that absence shapes Canadian law for decades. The intervention ecosystem is a site where structural inequality in legal resources translates directly into structural inequality in constitutional outcomes.

Although the direct users of this tool are legal clinics and pro bono counsel rather than marginalized communities themselves, the transmission is concrete: when a clinic can identify the right counsel in hours rather than weeks, those recovered resources return to client services. When a pro bono lawyer can identify a capacity gap at a regional equality rights organization, a community that would otherwise go unrepresented gains a voice in the cases that will govern their lives. The Intervention Application Toolkit extends this logic further: by reducing the drafting burden on under-resourced organizations, it lowers the threshold for participation in constitutional advocacy at every court level, not just for organizations already embedded in the SCC ecosystem.

I designed this project based on direct friction I experienced working at both ends of the legal system. As a student placement at the Community Legal Clinic of York Region (serving low-income residents and marginalized communities) and the Barbra Schlifer Commemorative Clinic (serving survivors of gender-based violence), the information asymmetry described in this proposal was a practical obstacle encountered in the course of casework. I also interviewed private firm constitutional litigators who confirmed the same gap from the other side. The design of every component of this toolkit reflects that dual vantage point. The principle of "nothing about us without us" is the origin of the project itself.

IV. Project Plan and Budget

4.1 Timeline

Period	Milestone	Deliverable
Months 1–2	Database migration; open-source repository setup; codebase documentation	Public GitHub repository with documented existing pipeline
Months 3–4	SCC RSS/JSON feed integration; deadline calculator; email alert system	Working Charter Intervention Monitor (SCC, v1.0)
Months 3–5	Ottawa agent dataset analysis; network map integration	Ottawa agent matching layer in Monitor and network map
Months 5–7	ONCA scraping pipeline; dataset validation	ONCA intervenor-counsel dataset; Monitor expanded to ONCA
Months 6–8	Intervenor factum opening section analysis; questionnaire design	Intervention application pattern analysis report
Months 7–9	BCCA expansion; LLM integration for application toolkit	BCCA dataset; Intervention Application Toolkit (beta)
Months 9–10	User testing; final integration; open-source release	Complete multi-court platform; contribution to A2AJ dataset infrastructure

4.2 Budget

The $10,000 fellowship would support the fellow's time across the 10-month period. No significant infrastructure costs are anticipated: the SCC, provincial and A2AJ data sources are free; web hosting for a Flask application is available at no cost on platforms such as Render; and LLM API costs for the application toolkit are minimal at the usage levels involved.